

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 9, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Bryan Cook. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. White and Mr. Case, agenda item #17 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Rinne and Mr. Roybal, agenda items #23 (a) and #23 (b) were removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on August 26, 2019. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

Mayor Orr opened a public hearing for a transfer of ownership for a retail liquor license application filed with the City Clerk’s Office for AB Cheyenne, WY, LLC d/b/a/ Applebee’s Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming (license currently held by RMH Franchise Corporation d/b/a Applebee’s Neighborhood Grill & Bar). There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the agenda item to the Finance Committee.

ORDINANCE – 3rd READING – Pursuant to Section 2.2.2 - Planned Development Regulating Plan, Section 2.4.1 - Zoning Text Amendment, and Section 5.6.2 - Planned Unit Development amendment, amending the Sweetgrass Planned Unit Development (PUD) Regulating Plan for 2,349.54 acre Sweetgrass PUD, City of Cheyenne, Laramie, County, Wyoming (located south of West College Drive and east of Avenue C). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4286)

ORDINANCE – 3rd READING – Submitting to the qualified property owners of real property within the boundaries of the Cheyenne Downtown Development Authority District of Cheyenne, Wyoming, excluding real property used exclusively for residential purposes, at a Special Election on Wednesday, October 16, 2019, the following Question: “Shall a Special Assessment of twenty (20) mills be levied upon the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, for a period of four (4) years pursuant to the provisions of Wyo. Stat. §15-9-217(b) for the purpose of (1) administrative costs; (2) landscaping or maintenance of public areas; (3) planning or management of development or improvement activities; (4) promotion of public events; (5) activities in support of business recruitment and development?” Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Luna. Comments were made regarding the importance of the levy taxation of businesses in the downtown area, evaluation of the DDA program, including how funds are spent, and how financial records are accessed in compliance with City code requirements. Motion carried. Voting “yes” – all members of the governing body present. (#4287)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MUB Mixed-Use Business Emphasis to NR-3 Neighborhood Residential – High Density for Lots 1-9, Block 1, North Gate Village, Cheyenne, Wyoming (located at the northwest corner of the intersection of Yellowstone Road and Prairie Hills Drive) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Vacating all of that 15’ alley right of way within Block 13, Arp Addition, Fifth Filing, City of Cheyenne, Laramie County, Wyoming, (located north of and adjacent to Leisher Road, east of Cribbon Avenue) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Re-appropriating the fiscal year 2019 budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6009)

[CA] RESOLUTION – Re-appropriating the fiscal year 2020 budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6010)

RESOLUTION – Supporting the City of Cheyenne to complete the Avenues Greenway Connector Trail between Evans and Airport Parkway and supplement available WYDOT TAP Grants with 6th Penny Tax Receipts (6th Penny Greenway Funds). Mr. White moved to approve, seconded by Mr. Luna. Mr. White moved to postpone to September 23, 2019, seconded by Mr. Luna. Mr. White, upon inquiry, advised staff requested a postponement allowing for additional review prior to approval. Motion to postpone carried. Voting “yes” – all members of the governing body present.

[CA] RESOLUTION – Accepting a grant of \$112,500.00 from the Recreation Mill Board for the renovation of the Jaycee Park Tennis Courts. Motion (per Consent Agenda) carried. (#6011)

[CA] RESOLUTION – Accepting a Hazard Mitigation grant from the Wyoming Office of Homeland Security, in the amount of \$191,430.85 for Dry Creek Drainage Planning. Motion (per Consent Agenda) carried. (#6012)

RESOLUTION – Authorizing submission of a Mineral Royalty Capital Construction Account Grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of replacing Fire Station #5. Mr. Shanor declared a conflict of interest due to his current employment, vacated Chambers and abstained from discussion and casting a vote. Mr. White moved to adopt, seconded by Mr. Roybal. During discussion a point of order was raised by Dr. Rinne regarding discussion participation by the Chair on agenda items. Mayor Orr relinquished duties of the Chair to Council President Case for the purpose of participating in debate. Upon inquiry, Robin Lockman, City Treasurer, advised the grant application deadline is September 19, 2019. Topics discussed included: Unidentified grant match funding, funding options, ability to not accept grant award, community growth needs relating to capital facilities, public health and safety considerations, grant funding application annual cycle and concerns relating to the current conditions of Fire Stations #5 and #3. Motion carried. Voting “yes” – Mayor Orr, Mr. Case, Mr. Esquibel, Mr. Luna, Mr. Roybal, and Mr. White. Voting “no” – Mr. Laybourn and Dr. Rinne. Mr. Shanor did not cast a vote. (#6013)

[CA] RESOLUTION – Granting an exception to the “201 Agreement” for the owner of the property located at 7615 E. Pershing Blvd. to allow repair or replacement of an on-site septic system located within Laramie County – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for the Sweetgrass 2nd Filing Subdivision for a portion of the north half of the northeast quarter of Section 16, Township 13 North, Range 66 West of the 6th Principal Meridian and including a Replat of all of Block 3 (Lots 1, 2 and 3 inclusive) of the Sweetgrass 1st Filing Subdivision, City of Cheyenne, Laramie County, Wyoming (located south of W. College Drive, east of Avenue C) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing a street name change from “Snyder Avenue” to “South Snyder Avenue” for the portion of a street located between Interstate 80 and West Allison Road, City of Cheyenne, Laramie County, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission for grant funding for the North City Zone Improvements Project in the amount of \$8,040,000.00 and authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents – referred to Finance Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving Fund for an amount not to exceed \$3,960,000.00 for the North City Zone Improvements Project and authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents – referred to Finance Committee. (Sponsor – Mr. Case)

Real Estate Purchase Agreement between the City of Cheyenne and John J. Koehler, for the sale of undeveloped public property described as a 1.46 acre portion of Lot 1, Block 1, Cheyenne Ice & Events Center, 1st Filing, City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$293,000.00. Piyush “Pete” Patel voiced concerns relating to the disposal of City owned property and provided history of his previous purchase offer made on the adjacent Hitching Post property. Mr. White moved to approve in an amount not to exceed \$293,000.00, seconded by Mr. Roybal. Mayor Orr upon inquiry, confirmed the property was appraised and that the property is vacant with the exception of a Wasatch Railroad Caboose which will be relocated. Motion carried. Voting “yes” – all members of the governing body present. (#7070)

Agreement for the trade of real property owned by the City of Cheyenne, described as Lots 1 and 2, Block 1, Clear Creek Subdivision, 1st Filing, and Lot 1, Block 1, Clear Creek Subdivision, 2nd Filing, Laramie County, Wyoming, consisting of 419.57 acres and having an appraised value of \$1,004,000.00, to Mariah, LLC, for real property owned by Mariah, LLC, described as all of Sections 11 and 14, lying north of the Union Pacific Railroad right-of-way, Township 12 North, Range 70 West of the 6th P.M., Laramie County, Wyoming, consisting of 543.76 acres and having an appraised value of \$1,060,000.00. During discussion, Mr. Shanor raised a point of order relating to State Statute §15-1-108 (a) (i), City Code Section 2.04.080 and Robert’s Rules of Order with regard to relinquishing duties of the Chair. Mike O’Donnell, City Attorney, upon inquiry, provided clarification regarding the Mayor’s responsibilities in reference to presiding over meetings of the governing body. Following Mr. O’Donnell’s explanation, Council President Case relinquished duties of the Chair to Mayor Orr. Mr. White moved to approve, seconded by Mr. Roybal. Dr. Rinne moved to amend by substitute dated September 9, 2019, seconded by Mr. Roybal. Discussion topics included: Belvoir Ranch access concerns including difficulty in obtaining UPRR permission for public access and extended staff time frame of efforts in attempting to acquire and maintain public access. Alessandra McCoy-Fakelman, Deputy City Attorney, upon inquiry, confirmed staff’s on-going efforts and dedication in obtaining public access and advised anticipated updates to the Belvoir Ranch Master Plan are currently being considered. Ms. McCoy-Fakelman reported documents relating to staff’s efforts are available for review by members of the governing body. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#7071)

[CA] Agreement between the Wyoming Department of Transportation (WYDOT) and the City of Cheyenne, Transit Program, for a Wyoming Rural Public Transportation Grant to assist in providing a local match for operation funds for the Transit Program for Fiscal Year 2020 (revenue to the City) – referred to Finance Committee.

[CA] Purchase and Sale Agreement between Timothy and Kimberly Cilek and the City of Cheyenne, for the purchase of real property described as Lot 1, Block 10, Leisher Black Addition, 2nd Filing, more commonly known as 101 Columbus Drive, in the City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$209,000.00 (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and Visionary Communications Inc. for wireless antenna tower space located at Fire Station No. 2, 514 W. Fox Farm Rd., Cheyenne, Wyoming, and the Cheyenne Public Safety Center, located at 415 W. 18th Street, Cheyenne, Wyoming – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and West Edge Collective, LLC, Cheyenne, for Fiscal Year 2020 MPO Public Engagement and Web Support Services (MPO Federal Funds) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Inberg-Miller Engineers, Cheyenne, for engineering services for design of the 2020 Pavement Management Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and the Wyoming Department of Transportation for D.U.I. Mobile Command Task Force enforcement and educational activities (Highway Safety Mobile Command Grant) – referred to Finance Committee.

Consideration of a Bid for a contract between the City of Cheyenne and Simon Contractors, Cheyenne, for the 2019 Pothole Repair Project (2015-2018 1% Sales Tax) – referred to Public Services Committee. James Johnson voiced concerns regarding his perception of a lack of communication between the Mayor and members of the governing body and advised he supports construction of a new Fire Station. Joe Dougherty made multiple inquiries relating to the emergency procurement and bid process involving the proposed bid. Dr. Rinne advised due to timing, the item was reviewed under other items for the agenda at the September 4, 2019 Public Services Committee meeting, therefore, provisions of Title 2 of City Code had been met. Dr. Rinne reported there was no recommendation on the item from Public Services Committee. Dr. Rinne moved to approve in an amount not to exceed \$249,999.25, seconded by Mr. Esquibel. Mayor Orr and TJ Barttelbort, Purchasing Manager, provided information involving the purchasing process utilized relating to the proposed bid. Eric Fountain, Mayor's Chief of Staff, upon inquiry, provided additional information involving pothole and street management processes and advised of the current lack of available staffing and resources to keep up with the maintenance demands. Mr. Fountain further reported funding for the project was previously budgeted for. City Council members voiced various concerns involving the proposed bid, cost negotiation process and use of emergency procurement funding. Mr. Case moved to "Lay the item on the Table", seconded by Mr. White. Motion carried. Voting "yes"- Mr. Case, Mr. Laybourn, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor, and Mr. White. Voting "no" – Mayor Orr and Mr. Esquibel.

[CA] Consideration of Bid #E-1-20 for furnishing eight (8) new four-door 2020 Model Utility (SUV) Police Interceptors, for the City of Cheyenne, Cheyenne Police Department (2015-2018 & 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-2-20 for furnishing eight (8) Motorola APX8500 Mobile Radios for the City of Cheyenne, Cheyenne Police Department (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-1-20 for a contract between the City of Cheyenne and Scotch Boy, Inc., Cheyenne, for the Irrigation Controllers and Equipment Upgrade Project (Parks Improvements, Maintenance, and R-O-W Operating Cost funds) – referred to Finance Committee.

[CA] Consideration of Bid #S-5-20 for a contract between the City of Cheyenne and STC Construction Co., Cheyenne, for the 2019 Wearing Course Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

Under other business:

Joe Dougherty requested an update on the progress of the punch list repairs for the Civic Center Commons Project. Wes Bay, Deputy City Engineer, upon inquiry, advised punch list repairs are currently underway.

Donn Edmunds expressed opposition to agenda item #18 which was referred to the Public Services Committee involving granting an exception to the “201 Agreement” for property located at 7615 E. Pershing Blvd.

James Johnson voiced concerns relating to his experience with the Downtown Development Authority (DDA) involving lack of accountability, communication and promotion of economic development.

Mr. Laybourn voiced opposition of the motion made to “Lay on the Table” for agenda item #24(a), spoke to concerns involving overall roadway management by the City and complemented current efforts for repairs being made on Yellowstone Rd. and Central Avenue.

Mike O'Donnell, City Attorney, upon inquiry, provided information involving the motion to “Lay on the Table” regarding agenda item #24(a) and advised he would be providing a more detailed response upon further review.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:22 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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